



DECISION

Complaint No. : POS/2151/2023/HYD/171

Name and address of the complainant : Mr. Zahoor Ali Shoro S/o Allah Bachayo
Shoro, C/o Asif Ali Shoro, Junior Clerk, U.C Piro Faqir Shoro,
Taluka Tando Adam, District Sanghar

Name of the Agency Complained against : Town Officer, Town Committee Khyber, District Matiari

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT AGAINST NON-PAYMENT OF SALARIES OF
AWAITING PERIOD FROM 08.06.2021 TO 28.02.2022 TO
THE COMPLAINANT

Complaint

Mr. Zahoor Ali Shoro filed a complaint dated 02.03.2023 against Town Committee, Khyber alleging inordinate delay in payment of salaries for awaiting period w.e.f 08.06.2021 to 28.02.2022 despite the orders issued by Director-II, Sindh Local Government Board, Karachi. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 10.05.2023 to the Town Officer, Town Committee, Khyber, District Matiari for report. In response, the Administrator, Town Committee, Khyber informed vide letter dated 23.05.2023 that the complainant was waiting for posting at the disposal of Local Government Department. Subsequently, he was posted at Town Committee Khyber but he never raised the issue of his salaries until his transfer vide order dated 08.05.2023.
4. A copy of the agency's report was sent to the complainant for rejoinder vide letter dated 20.06.2023, who in response informed vide letter dated 05.07.2023 that he had repeatedly requested for payment of his salaries.
5. The case was heard on various dates. The salary of the complainant for awaiting period was worked out at Rs.386,886/-. The Chairman, Town Committee Khyber sent a letter dated 28.02.2025 to the Secretary, Local Government Board, Karachi for payment of salaries to the complainant due to weak financial position of Town Committee, Khyber.

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Findings

6. The investigation of the complaint revealed mal-administration against the agency on its failure to pay outstanding arrears of salaries of awaiting period, amounting to Rs.386,886/- as utilization of OZT share as provided under section 106 (2) of Sindh Local Government Act 2013 (SLGA-2013) explicitly prohibits diversion of funds for other purposes before clearing salaries/pension of local council employees.

Decision

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the Town Officer, Town Committee, Khyber, District Matiari is hereby directed to pay dues of awaiting period amounting to Rs.386,886/- to the complainant Mr. Zahoor Ali within 30 days.

8. The Secretary, Sindh Local Government Board, Karachi is also directed to issue such directions to the Town Committee Khyber, District Matiari for compliance.

Given under my hand and seal of the office

Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated /6th January, 2026

